



Form 29 - Notice of non-party disclosure

Industrial Relations Act 2016, section 989

Industrial Relations (Tribunals) Rules 2011, rules 64A, 64B, 64C, 64D, 64E, 64F, 64G, 64H and 64I

Information

- Use this form to obtain documents from non-parties.
- Please read this form carefully. Please complete all relevant sections. Information that is missing or non-compliant with the relevant section of an Act or the Rules may result in the rejection of your form.
- Once this form has been processed the Industrial Registry will contact you so that you can collect the authorised forms and serve them on the relevant person.

For further information please contact the Industrial Registry on 1300 592 987 or via email at girc.registry@girc.qld.gov.au

If there is an affected party and Rule 64D applies, the lawyer must complete certificate in Form 31 if the affected party is not to be served.

Applicant/Appellant:	Cory Shepherd

V

Respondent:	Workers' Compensation Regulator

PLEASE NOTE: If there are more than two parties to this application, please complete a **Form I - Parties list** and file it with this form.

ISSUED WITH THE AUTHORITY OF THE  INDUSTRIAL COURT OF QUEENSLAND  QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Filed in the Industrial Registry on (Date):	04 / 07 / 2025
Upon the request of	
Name of requesting party:	Workers' Compensation Regulator
Address:	150 Mary Street, Brisbane QLD 4000
Signature of Industrial Registrar:	 Senior Registry officer
Date:	04/07/25

To:	
Name of nominated party:	Director Client Service & Performance, Kimberley Wright
	Queensland Health
Address:	Level 3, 831 Gympie Road, Chermside QLD 4032
And to:	
Name of affected party:	
Address:	

NOTE: If there is more than 1 affected party - please complete schedule 1

Between 7 and 14 days after the day of service of this notice on you, you must (for the purpose of the Court or Commission determining this proceeding) produce the document(s) mentioned or described in the schedule to the requesting party, in accordance with this notice.

The matter in issue in the proceedings about which the document(s) sought is/are directly relevant is as follows:

3000 character limit. (Note: If more than 3000 characters are required please attach a schedule)

Matters in issue in the proceedings relate to s32(5) of the *Workers' Compensation and Rehabilitation Act 2003* (the Act). EG:

1. Did Mr Shepherd sustain a personal injury
2. Did the personal injury arise out of or in the course of Mr Shepherd's employment
3. Was Mr Shepherd's employment a significant contributing factor to the injury
4. Did the injury arise out of or in the course of:
 - a. Reasonable management action taken in a reasonable way by Qld Health in connection with Mr Shepherd's employment
 - b. Mr shepherd's expectations or perception of reasonable management action being taken against him

The matters in issue in the proceedings about which the documents sought are directly relevant are 2 to 4 above.



Schedule of documents		
The following documents must be produced		
No.	Date	Description
1	Various	Original Payslips of Mr Cory Shepherd that cover the periods of employment (including date of the Payslip) that cover the following periods of employment: - o fortnight commencing 5 February 2024 (that cover 17 March – 18 March 2024) - o fortnight commencing 19 February 2024 - o fortnight commencing 18 March 2024 (that cover the date of 30/03/2024) - o fortnight commencing 1 April 2024.
2	Various	Any amended Payslips of Mr Cory Shepherd (including date of amendment to the Payslip) that cover the following periods of employment: - o fortnight commencing 5 February 2024 (that cover 17 March – 18 March 2024) - o fortnight commencing 19 February 2024 - o fortnight commencing 18 March 2024 (that cover the date of 30/03/2024) - o fortnight commencing 1 April 2024.
3	17/06/2020	Complete 8 hour shift agreement signed by Mr Cory Shepherd on or around 17/06/2020
4	Various	08/04/24 to 01/07/2024 – Emails to and from payroll in relation to pay issues raised by Mr Cory Shepherd including: - o on or about 8 April 2024 emails concerning “public holiday not worked” on 30 March 2024 - o on or about 24 April 2024, emails sent from/to Mr Shepherd about “underpayments” - o on or about 03/05/2024, emails sent from/to Mr Shepherd about the RDO and overtime issue - o on or about 10/05/2024, emails sent from/to Mr Shepherd about the Mr Shepherd’s concerns - o on or about 13/05/2024, emails sent from/to Mr Shepherd about the RDO and AVAC
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A. Obligations of nominated party

1. The nominated party is required to produce to the requesting party the documents mentioned or described in the schedule of documents above.
2. The nominated party is required to produce the documents between 7 and 14 days after being served with this notice.
3. The nominated party is required to produce the documents-
 - (a) at the nominated party's or a lawyer's/agent's place of business during normal business hours; or
 - (b) as may be agreed between the nominated party and the requesting party.
4. The requesting party may take copies of the documents produced pursuant to this notice.
5. A failure by the nominated party to comply with the Commission-imposed obligations may result in the requesting party obtaining compliance orders and such orders as the Commission may consider appropriate.

The nominated party is entitled to the reasonable expenses of producing documents. The nominated party must give notice of its reasonable expenses within one month of compliance with this notice and the requesting party can pay those expenses or cause the expenses claimed to be assessed.

B. Nominated party's rights

1. The nominated party is only obliged to produce documents if-
 - (a) the documents relate to a matter in question between the parties to the proceeding;
 - (b) the document is in the possession or control of the nominated party;
 - (c) the document is capable of being required to be produced at trial;
 - (d) there is no other reasonably simple, inexpensive way for the requesting party to prove what the documents show.
2. The nominated party is only obliged to produce documents if the requesting party has served a copy of this notice on-
 - (a) a person, other than a party to this proceeding named in the title, about whom information is sought; and
 - (b) the owner of the document if it is other than the nominated party. (If the owner of the document cannot be found after reasonable inquiry compliance with this sub-rule is excused.)
3. The nominated party may object to production provided that such objection is given within 7 days of service of this notice or such other time as the Commission may allow.
4. The nominated party's objection must -
 - (a) be written;
 - (b) served on the requesting party; and
 - (c) clearly state the reasons for objection.Grounds for objection are contained in Rule 64E of the *Industrial Relations (Tribunals) Rules 2011*.
5. Service of an objection is a stay of this notice and the objections may be challenged under Rule 64G of the *Industrial Relations (Tribunals) Rules 2011* by the requesting party.

C. Affected party's rights

1. The affected party (*if any*) may object to production provided that such objection is given within 7 days of service of this notice or such other time as the Commission may allow.
2. The affected party's objection must-
 - (a) be written;
 - (b) be served on the requesting party or their lawyer/agent; and
 - (c) clearly state the reasons for objection.Grounds for objection are contained in Rule 64E *Industrial Relations (Tribunals) Rules 2011*.
3. Service of an objection is a stay of this notice and the objections may be challenged under Rule 64G *Industrial Relations (Tribunals) Rules 2011* by the requesting party.
4. This notice must be served on all affected parties before service on the nominated party.



Filed by:			
Name:	Renee Matheson		
	Workers' Compensation Regulator		
Description of signatory:	Senior Appeals Officer		
Postal address:	PO Box 10119, Brisbane Adelaide Street		
	Suburb/Town	Brisbane	Postcode 4000
Phone number:	07 3842 2792	Fax number:	
Mobile number:	0460 021 030		
Email address:	renee.matheson@oir.qld.gov.au		
Signature:			
Date:	04 / 07 / 2025		



And To:	
Name of 2nd affected party:	
Address:	
And to:	
Name of 3rd affected party:	
Address:	

And To:	
Name of 4th affected party:	
Address:	
And to:	
Name of 5th affected party:	
Address:	

And To:	
Name of 6th affected party:	
Address:	
And to:	
Name of 7th affected party:	
Address:	

